

13. 25CV05089 SANDERS, PHILLIP V. SANDERS, MARLENE ET AL

EVENT: Demurrer of Defendant, Marlene Sanders to Plaintiff's Complaint

Defendant Marlene Sanders' ("Defendant" herein) Request for Judicial Notice is granted. The Court agrees with the Plaintiff that "legal capacity" is not the same thing as whether Plaintiff can ultimately prove his claimed right to the disputed funds, which is what Defendant is arguing by way of her Demurrer. See e.g., *Washington Mutual Bank v. Blechman* (2007) 157 Cal.App.4th 662, 669-670 ["There is a difference between the *capacity* to sue, which is the right to come into court, and the *standing* to sue, which is the right to relief in court (citations omitted)."] Here, the Court finds that Plaintiff has sufficiently stated causes of action for Fraud (Intentional Misrepresentation), Negligent Misrepresentation, Conversion, Negligence, Breach of Implied Covenant of Good Faith and Fair Dealing, and Declaratory Relief and the Demurrer is overruled in its entirety. Defendant is ordered to file and serve her Answer to the Complaint within 20 days of this hearing. The Court will sign the form of order submitted by the Plaintiff.

The Case Management Conference on June 24, 2026 is continued to September 16, 2026 at 10:30 a.m. Case Management Conference Statements are to be timely filed and served.

14-15. 25CV05132 KATHLEEN FRANCES O'LEARY, BY AND THROUGH HER SUCCESSOR-IN-INTEREST, REBEKAH EASTER ET AL V. MURRAY, JASON ET AL

EVENTS: (1) Plaintiffs' Motion to Compel the Deposition of Michael Lunsford Regarding the Arbitration Agreement

(2) Plaintiffs' Motion to Compel Defendant Providence Administrative Consulting Services, Inc.'s Inspection of Electronically Stored Information Regarding the Arbitration Agreement

Plaintiffs' Motion to Compel the Deposition of
Michael Lunsford Regarding the Arbitration Agreement

The Motion is GRANTED. The Court finds that the requested deposition of Michael Lunsford is narrow, targeted, and necessary to allow Plaintiffs to prepare their opposition to Defendants' Motion to Compel Arbitration and concludes that Plaintiffs have shown good cause to compel the deposition of Michael Lunsford limited in scope to the circumstances surrounding the arbitration agreement. The Court orders Defendants to produce Michael Lunsford for deposition, limited to issues concerning the alleged arbitration agreement and Defendants' Motion to Compel Arbitration within 10 Court days of the date of hearing. Counsel for the Plaintiffs shall prepare and submit a form of order within two weeks.

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Plaintiffs' Motion to Compel Defendant Providence Administrative
Consulting Services, Inc.'s Inspection of Electronically Stored
Information Regarding the Arbitration Agreement

The Court finds that the information requested in Plaintiff's Notice of Demand For Inspection And Copying No. 1 To Defendant Providence Administrative Consulting Services, Inc. Pertaining To Electronically Stored Information [See Exhibit C to the Declaration of Thomas G.C. McLaughlin in Support of Plaintiffs' Motion], and even taking into consideration the subsequent limitations presented by Plaintiffs, the request exceeds the scope of permissible pre-arbitration discovery. The Motion is DENIED. Counsel for the Defendants shall prepare and submit a form of order within two weeks.

The Case Management Conference on July 22, 2026 is continued to September 9, 2026 at 10:30 a.m. Case Management Conference Statements are to be timely filed and served.